FOUR YEARS AFTER THE CITIZENSHIP (AMENDMENT) ACT, 2019, OR CAA, WAS PASSED, the Union ministry of home affairs (MHA), on March 11, notified the rules to implement the law. The rules prescribe how those eligible can apply for Indian citizenship under the CAA. Coming just days ahead of the announcement for the general election, the BJP-led Centre's move has once again triggered a political slugfest and a range of reactions across the country. While the Sindhi refugees from Pakistan in Madhya Pradesh and Matuas from Bangladesh in West Bengal celebrated joyously, protests erupted in several parts of Assam.



FIRESTORM IN ASSAM All Assam Students Union members at an anti-CAA rally in Guwahati, Mar. 12

ANI

Be that as it may, in its essence, the CAA makes it easier for Hindu, Sikh, Jain, Buddhist, Christian and Parsi immigrants/ asylum-seekers from three Muslim-majority neighbouring countries—Afghanistan, Bangladesh and Pakistan—to get Indian citizenship. All they have to do is prove they entered India legally or illegally before December 31, 2014, and have stayed here for at least five years. The ruling BJP has sought to project the CAA as a fulfilment of its constitutional commitment to the "persecuted minorities" from these countries. "Since Independence, it was a promise of our Constitution that citizenship will be granted to those persecuted religious minorities in Bangladesh, Afghanistan, and Pakistan.... These immigrants felt insulted in their own country when they were not granted citizenship," says an indignant Amit Shah, the Union home minister.

The Opposition, while questioning the timing, says the BJP has raked up the issue to polarise the vote in the general election. The government plays innocent, blaming the delay in notifying the legislation on the Covid pandemic. Incidentally, since 2022, the Centre has allowed 31 district magistrates and home secretaries of nine states—Gujarat, Rajasthan, Chhattisgarh, Haryana, Punjab, Madhya Pradesh, Uttar Pradesh, Delhi and Maharashtra—to grant citizenship under the CAA. Even though several of these states were ruled by Opposition parties, 1,414 foreigners got citizenship in the first year, without any protest.

Several Muslim bodies have argued that, by excluding Muslims from its ambit, the CAA infringes on the fundamental right to equality and secularism guaranteed under Article 14 of the Constitution. All India Majlis-e-Ittehadul Muslimeen (AIMIM) president and MP Asaduddin Owaisi says he will approach the Supreme Court again and seek directions against the CAA. There are already 247 petitions pending against the law in the top court.

THE OPPOSITION SAYS THE BJP HAS RAKED UP THE CAA TO POLARISE THE VOTE IN THE GENERAL ELECTION.... THE CENTRE, IN ITS DEFENCE, SAYS IT HAS PASSED THE TEST OF 'REASONABLE CLASSIFICATION', APPLICABLE TO ARTICLE 14

The Centre, in its defence, says the CAA has passed the test of 'reasonable classification' applicable to Article 14. The apex court has maintained that Article 14 permits 'reasonable classification' of persons, objects, transactions by the state for the purpose of achieving specific ends that help in society's development. In the case of CAA, what most BJP leaders invoke as "reasonable classification" is the assumption that Muslims are unlikely to be persecuted in the three Islamic countries, and hence have been kept out.

Even though the BJP narrative